

Nos. 78-79, 81, 83: The responses to these interrogatories only state there are no documents responsive to the requests. These responses are incomplete and evasive, and thus deficient. Defendant is ordered to serve code-compliant further verified responses to Special Interrogatories, Set Three, Nos. 78-79, 81, and 83 within ten (10) days of service of notice of entry of this order.

Sanctions

Code of Civil Procedure section 2033.290, subdivision (d), provides “[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Here, Plaintiff has been successful, to a degree, in each motion. Accordingly, the Court awards Plaintiff sanctions in what it finds to be a reasonable amount of \$600.00 for each motion, for a total of \$1,200.00. Sanctions shall be paid by Defendants jointly and severally within ten (10) days of entry of the order. The Court acknowledges Defendants have succeeded in their oppositions to a degree; however, they have not sought sanctions. As such, none are ordered payable by Plaintiff.

7. CU0001352 William Vick vs. Rmax Operating, LLC et al

Defendant Bobby Brown Construction’s motion to compel Defendant/Cross-Defendant RMAX Operating, LLC’s further responses to Form Interrogatories – Construction, Set One (“FIs”), and for sanctions is now MOOT in light of the dismissal of Bobby Brown Construction’s claims against RMAX. No appearances required.

8. CU0001906 Dezmond Devonte Sinclair vs. Tahoe Downtowner, LLC et al

Defendant Town of Truckee’s unopposed motion for leave to file amended answer is dismissed as MOOT. This Defendant was dismissed as a party subsequent to the filing of the motion. No appearances are required.

9. CU0002183 Adventure Resort Marketing, LLC, (ARM) et al vs. B & W Resorts, Inc., dba Harmony Ridge Resort et al

No appearances required. The parties have stipulated to jointly withdraw their respective motions.

10. CU0002187 MA Construction et al v. Li, Jingwen et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed pursuant to Code of Civil Procedure § 583.420. Absent good cause being shown, this matter shall be calendared to be dismissed on June 18, 2027.

11. CU0002216 Peter Zellner et al vs. Amanda Jean Neadeau

This matter is before the Court on a petition for compromise of minor's claims. Appearances by counsel for Petitioner and the Petition/guardian ad litem are required. Petitioner is directed to file a corrected Petition to correct the below deficiencies prior to the hearing. If not filed prior to the hearing, the Court intends to continue the hearing to March 23, 2026 at 1:30 p.m.

- The petition does not contain a description of the settlement terms – section 10(c) is blank. Please complete this section. The Court understands the settlement terms are set forth in an attachment, but this section should not be blank. It should be completed specifically or a reference to a different attachment such as 18b(3) could be made.
- Please fill in the defendant's name in section 11(b)
- Please do not include the settlement proposal in the middle of the JC Form Petition. Currently, it is inserted as pay 6 of the Petition, as well as attached as the 18b(3) attachment.
- Section 17(c) and 17(f) - please clarify. If fees have not yet been approved and received, then the information in 17(c) should actually be set forth in 17(f). 17(c) is for fees already received, while 17(f) is for fees anticipated. The reference to "upon court approv" seems to indicate the incorrect section is filled in.

12. CU0002439 Brandon Huerta vs. Jason Waters, et al.

No appearance required. In light of the proof of service of the Summons and Complaint filed on January 6, 2026, the OSC re Dismissal is hereby dismissed.

13. CU0002522 Douglas Gray vs. Infinity Insurance

On the Court's own motion, the Court vacates the OSC re Dismissal set for April 27, 2026. A proof of service evidencing service on Respondent has now been filed.

The Court nominates five arbitrators as more specifically set forth below. Further the Court grants the motion to compel raw data. Sanctions are awarded to Petitioner in the amount of \$4,500.00 which shall be paid within thirty (30) days of service of entry of this order.

Legal Standard

Insurance Code § 11580.2 mandates arbitration of uninsured and underinsured motorist claim disputes between insurers and insureds regarding liability, damages, or both. "The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration." Ins. Code. § 11580.2(f).

In general, "an arbitration has a life of its own outside the judicial system." *Briggs v. Resolution Remedies* (2008) 168 Cal.App.4th 1395, 1401. However, "Insurance Code section 11580.2, subdivision (f) commits discovery disputes in uninsured motorist arbitrations to the superior court." *Id.* fn. 6.